26SMCV03396 26SMCV03396

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-01

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CP%2C09%2F01%2F2026

Source SHA-256: 8da645c56327af30f5b418fe4125d8739101c7b6d74f80987fecbbea5bafa36c

Case Number: 26SMCV03396 Hearing Date: September 1, 2026 Dept: P

Tentative Ruling

Fawzy Mansour v. Crisis24 Protective
Solutions, Case No. 26SMCV03396

Defendant’s Motion to Compel Arbitration

Hearing Date: September 1, 2026

Background

Plaintiff Fawzy Mansour (“Mansour”) sued Defendant Crisis24 Protective Solutions, Inc. (“Crisis24”) for wrongful termination and five violations of the California Fair Employment and Housing Act (“FEHA”) for disability discrimination, retaliation, and failure to provide reasonable accommodations. Mansour alleges that Crisis24 hired him as a Protection Operation Agent and that he began work on March 29, 2026. (Complaint, ¶ 8.) Mansour alleges that around April 5, 2026, during an instructor-led jiu-jitsu drill, Crisis24’s instructor improperly manipulated Mansour’s leg, causing a knee injury. (Complaint, ¶ 12.) Mansour alleges that after he was injured, Crisis24 initiated the workers’ compensation process, but instead advised Mansour that he had been terminated on April 8, 2026. (Id. at ¶ 25.)

On June 23, 2026, Mansour filed the complaint.

On July 27, 2026, Crisis24 filed the Motion to Compel Arbitration. On August 18, 2026, Mansour filed opposition. On August 25, 2026, Crisis24 replied. On August 26, 2026, Mansour filed a request for leave to file a sur-reply.

Arguements

Crisis 24 moves to compel arbitration under an arbitration agreement it alleges Mansour signed as part of his onboarding paperwork. (Motion to Compel Arbitration, p. 1.) Crisis24 argues that the arbitration agreement invokes the FAA and requires Mansour to arbitrate "any and all claims . . . that you may have against Crisis 24 . . . arising out of or relating to your employment with Crisis24, including but not limited to termination of employment." (Ibid.) Crisis24 argues that the agreement is enforceable, there are no grounds for rescission, and that the agreement is not unconscionable. (Id. at pp. 4-8.)

In opposition, Mansour argues that Crisis24 has not established that he agreed to the arbitration agreement because the document it attached is unsigned, and the purported verification page does not identify the Crisis24 policy as the document being signed. (Opposition, p. 4.) Mansour argues that he does not remember agreeing to the arbitration policy and can access his other onboarding documents through his DocuSign account, but not the arbitration agreement, that DocuSign has said that the agreement was not attached to Mansour's account, and that the signature Crisis24 produced differed from Mansour's e-signature on other other DocuSign documents. (Id. at pp. 4-6.) Mansour argues that Crisis24 has not met its burden of proving a valid and enforceable arbitration agreement. (Id. at p. 7.)

In reply, Crisis24 argues that Mansour concedes that the agreement is enforceable and does not provide any evidence that Mansour did not sign the agreement. (Reply, p. 1.) Crisis24 argues it met its burden by producing a signed arbitration agreement and that it is Mansour's burden to show that the signature on the arbitration agreement is false. (Id. at p. 2.) Crisis24 argues that the reason Mansour was unable to find the arbitration agreement in DocuSign is because the agreement was executed through Dayforce, another software platform. (Reply, p. 5.) Crisis24 argues that Dayforce's records show that Mansour completed and signed the arbitration agreement because it shows that Mansour logged on, generated, and applied his electronic signature to the policy. (Id. at p. 6.) Crisis24 argues that failure to read or recall signing an agreement is not a defense to enforcement. (Id. at

p. 7.) Additionally, Crisis24 argues that the PSG policy mentioned on the initial signature sheet and the Crisis24 policy sent through Dayforce are the same policy. (Id. at p. 9.)

Mansour then filed a request for leave to file a sur-reply. In the sur-reply, Mansour argues that Crisis24's supplemental evidence still does not establish that Mansour agreed to the arbitration policy because there is nothing connecting the signature pages with the policy except the envelope ID, which appears to have been for six acknowledgement pages, but no agreement. (Id. at p. 3.) Mansour argues that Crisis24 still has not shown what policy Mansour allegedly signed. (Id. at p. 5.) Mansour also argues that he has not conceded supplemental challenges to the enforceability of the arbitration agreement. (Id. at p. 6.)

Arbitration Standard

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate a controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists . . . ." (Code Civ. Proc., § 1281.2) "The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.)

The threshold issue for the Court is whether an agreement to arbitrate exists. (CCP § 1281.2.) "[T]he trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (CCP § 1290.2.) "Because the existence of the agreement is a statutory prerequisite to granting the [motion or] petition, the [party seeking arbitration] bears the burden of proving its existence by a preponderance of the evidence." (Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413, 58.) To meet this burden, the moving party must first produce "prima facie evidence of a written agreement to arbitrate the controversy." (Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413.) If the opposing party presents evidence challenging the authenticity of the agreement, “the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158,165–166.)

Discussion

a.
Sur-Reply

Crisis24 did not raise any
issues in its reply that were not raised in its initial motion to compel arbitration. Therefore, Mansour’s sur-reply was unnecessary. Nonetheless, the Court will consider the sur-reply at its discretion.

b.
Motion
to Compel Arbitration

In its initial Motion to Compel
Arbitration, Crisis24 attached the unsigned “Crisis23 Dispute Resolution Policy Acknowledgement (Arbitration of Disputes). (Buksar Decl., Exhibit A) Crisis24 presents this agreement to new employees as part of the onboarding process and has them sign the agreement using a unique electronic signature. (Buksar Decl., ¶ 3.) Crisis24 also attached a signature page for a file named PSG US Dispute Resolution Policy (CA).pdf, bearing Mansour’s electronic signature. (Buksar Decl., Exhibit B.) In a supplemental Declaration, Crisis24 says that its initial onboarding was done through a platform called Dayforce that provided temporary access to a DocuSign account that was not attached to any new employee’s personal email address but was rather associated with a temporary Dayforce account. (Buksar Decl., ¶¶ 6-7.) Crisis24 also provides evidence that the file name of the signature page, PSG US Dispute Resolution Policy (CA), refers to the Private Strategic Group, the unit for which Plaintiff was hired. (Id. at ¶ 10.) The “Crisis24 Dispute Resolution Policy Acknowledgement Agreement (Arbitration of Disputes)” is the document saved under the file name referenced in the signature page. (Ibid.) Further, Crisis24’s records show that the DocuSign envelope containing the signature page was signed by an account identifying the signer as Fawzy Mansour. (Id. at ¶ 11.)

Under the Uniform Electronic Transactions Act (UETA), “[A]n electronic signature has the same legal effect as a handwritten signature.” (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 843; Espejo v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 106; see CCP § 1633.7, subd. (a) [“A ... signature may not be denied legal effect or enforceability solely because it is in electronic form.”].) Like any writing, an electronic record “must be authenticated before the writing, or secondary evidence of its content, may be received in evidence.” (Ruiz, supra, at p. 843, citing Evid. Code § 1401.) “The party seeking authentication may carry its burden by presenting evidence of the contents of the contract in question and the circumstances surrounding the contract's execution.” (Fabian v. Renovate America, Inc. (2019) 42 Cal.App.5th 1062, 1068, citing Ruiz, at p. 844; CCP § 633.9, subd. (b).) If the party opposing arbitration is unable to recall making an electronic signature or denies having done so, then the party petitioning for arbitration bears “the burden of proving by a preponderance of the evidence that the electronic signature was authentic.” (Ruiz, supra, 232 Cal.App.4th at p. 846; Espejo, supra, 246 Cal.App.4th at p. 1060.)

Crisis24’s evidence carries their burden of showing that the electronic signature was authentic. The arbitration agreement identified as “Crisis24 Dispute Resolution Policy Acknowledgment Agreement (Arbitration of Disputes)” is identical to the agreement referred to in the signature page, which was also identified in its file name as a dispute resolution agreement. (Supplemental Baksour Decl., ¶ 10.) This is sufficient evidence to establish that Mansour signed the agreement electronically.

The Court finds that the Arbitration Agreement is enforceable.

The Agreement provides for binding arbitration for all disputes “arising out of or relating to your employment with Crisis24 or any of its affiliates,” which would include this FEHA action. Therefore, Crisis24’s Motion to Compel Arbitration is GRANTED.

In his sur-reply, Mansour argues that he “reserves the right to request limited supplemental briefing regarding any remaining enforceability issues.” Not so. A party to an arbitration agreement is generally obliged to raise unconscionability and other enforcement defenses at the time they initially resist arbitration. (See Jenks v. DLA Piper Rudnick Gray Cary US LLP (2015) 243 Cal.App.4th 1, 9 [contention that the moving party cannot enforce an agreement as a non-signatory must be raised at the outset], citing Cummings v. Future Nissan (2005) 128 Cal.App.4th 321, 328-329 [a party generally must raise unconscionability issues at the time she initially resists arbitration]; Moncharsh v. Heily & Blase (1992) 3 Cal.4th 1, 30-31 [contention that the agreement is unlawful must be raised at the outset].)

Conclusion

Crisis24's Motion to Compel Arbitration is GRANTED.

This matter is STAYED pending arbitration.